

W.P. No.21790 of 2025

Waqar Ahmad Khan

The National Accountability Bureau, etc.

06.05.2025. M/s Farooq H. Naik, Ali Sibtain Fazli, M. Usman Tariq Gill, Abad-ur-Rehman, Mian Sohail Anwar, and Hasham Ahmad Khan, Advocates for the petitioner.
Mr. Muhammad Irfan Raza Ghazi Sial, Advocate in W.P. No.24062/2025.
Mr. Muhammad Amjad Pervaiz, Advocate General, Mr. Waqas Umar, AAG, Mr. Imran Khan, AAG, Mr. Muhammad Nawaz Ch. AAG, Mr. Muhammad Aurangzaib, AAG, Mr. Muhammad Awais Arshad, AAG, and Mr. Anwaar Hussain, AAG.
Mr. Razaqat Ali Dogar, Deputy Attorney General, Mr. Asad Ali Bajwa, Deputy Attorney General, and Mr. Nauman Khalid, Assistant Attorney General.
Mr. Jahanzaib Khan Bharwana, APGA NAB, Ch. Farid-ul-Hassan, DPG NAB, Hafiz Asad Ullah Awan, Sadaqat Mehmood Butt and Fatima Shahid, and Muhammad Waseem Javaid, Special Prosecutors for NAB.

Through the instant constitutional petition under Article 199 of the Constitution of the Islamic Republic of Pakistan, the petitioner has made the following prayers: -

“In view of the submissions made above, it is therefore, most respectfully submitted that the order dated 07.04.2025 may kindly be declared malafide, illegal, unlawful, without lawful authority, without jurisdiction, ultra vires the Constitution, and is of no legal effect and be set aside.

It is further prayed that all steps taken in implementation of or taken as result of the order dated 07.04.2025 including approval of fresh auction schedule be also declared null and void and of no legal effect.

It is further prayed that the pending disposal of the main petition the operation of the order dated 07.04.2025 kindly be

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suspended and/or the order to the extent of show cause notice issued for withdrawal of post arrest interim bail of the petitioner be suspended.

It is further prayed that the respondent No.4 be restrained from giving effect to or implementing order dated 07.04.2025 in any manner whatsoever.

It is further prayed that the order dated 07.04.2025 including issuance of show cause notice to the petitioner for cancellation of petitioner's interim post-arrest bail may kindly be suspended."

The petitioner has also filed another constitutional petition bearing No.24063/2025 titled "Waqar Ahmad Khan. Vs. The National Accountability Bureau through its Chairman, etc.", in which he made the following prayers: -

"In view of the submissions made above, it is therefore most respectfully submitted that the order dated 07.04.2025 may kindly be declared malafide, illegal, unlawful, without lawful authority, without jurisdiction, ultra vires the Constitution and is of no legal effect and be set aside.

It is further prayed that the assumption of jurisdiction by the respondent No.4 be also declared illegal, without jurisdiction and void and of no legal effect.

It is further prayed that the pending disposal of the main petition the operation of the order dated 07.04.2025 kindly be suspended."

Ms. Mehreen Haroon, etc. also filed a Constitutional petition bearing No.24062 of 2025, titled "Ms. Mehreen Haroon, etc. Vs. Ministry of Finance, etc.", in which the following prayer has been made: -

"In view of the above, it is most respectfully prayed that this Hon'ble Court after

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accepting this writ petition, to declare the actions of the respondents in marking the debit block/freezing the petitioners' bank accounts as unconstitutional, illegal, and in violation of the petitioners' fundamental rights under the Constitution of Pakistan and to direct the respondents to immediately unfreeze and restore the petitioner's bank accounts and allow them to operate their accounts freely, in the supreme interest of justice, equity and fair play.

It is further prayed that to restrain the respondents from taking any adverse financial actions against the petitioners without due process of law in any manner whatsoever."

2. Initially, W.P. No.21790 of 2025, filed by the petitioner Waqar Ahmad Khan, was listed before the learned Division Bench of this Court. Meanwhile, W.P. No.24063 of 2025, titled "Waqar Ahmad Khan. Vs. The National Accountability Bureau through its Chairman, etc." and W.P. No.24062 of 2025, titled "Ms. Mehreen Haroon, etc. Vs. Ministry of Finance, etc." were listed before the learned Single Bench of this Court. However, by order dated 23.04.2025, the cases were referred to the Hon'ble Chief Justice for consideration of the suitability of constituting a larger Bench for the discussion of legal proposition, in the following words, i.e., "since the interpretation of various provisions of law regarding vital aspects is in sight. Following this, the matter was placed before this Full Bench".

3. On 28.04.2025, the learned Advocate General, while appearing before this Court, submitted that the petitions before this Court have been referred by the learned Single Bench and by the learned Division Bench of this Court for consideration of the legal preposition. However, before dealing with the

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same he submitted that the petitions bearing W.P. No.24063 of 2025 titled “Waqar Ahmad Khan. Vs. The National Accountability Bureau through its Chairman, etc” and W.P. No.24062 of 2025, titled “Ms. Mehreen Haroon, etc. Vs. Ministry of Finance, etc”, were placed before the learned Single Bench of this Court by the office in view of the judgment dated 08.04.2025 passed by learned Division Bench of Lahore High Court, Rawalpindi Bench Rawalpindi, in W.P. No.1027 of 2025, titled “Aamir Nawaz Minhas and others. Vs. National Accountability Bureau and others”, wherein it was declared that section 32 of the National Accountability Ordinance, 1999 mandates the Division Benches of the High Court constituted by the Hon’ble Chief Justice can only hear appeals and revisions arising out of final judgment and order. The Additional Registrar (Judicial) of this Court was also instructed to schedule the writs of mandamus and certiorari before the learned Single Bench of this Court, which are not the result of a final judgment. Learned Advocate General further submitted that in the light of case of **“NATIONAL ACCOUNTABILITY BUREAU through Chairman and another. Vs. Agha SIRAJ KHAN DURRANI and 8 others” (PLD 2021 Supreme Court 756)**, such petitions are to be heard by the Division Bench of this Court and seeks time to render his assistance on the subject. Upon this, the case was adjourned. Considering that the interpretation of various legal provisions regarding important aspects is at issue in this petition, notice was also issued to the learned Attorney General for Pakistan and Advocate General Punjab under Order 27-A of the Civil Procedure Code, 1908, for their assistance on the matter.

4. Today, learned counsel for the NAB and the learned Deputy Attorney General representing the Attorney General for Pakistan have submitted their written arguments.

5. Learned Advocate General argued that ever since the promulgation of NAB Ordinance in 1999, the practice of all the High Courts of Pakistan has to fix all NAB matters before Division Benches and no example across the country is available, where any bail in NAB matters was fixed before Single Bench. Section 9-B of NAB Ordinance, 1999 says that all the offences under this Ordinance shall be non-bailable and no court shall have jurisdiction to grant bail to any accused. Since the word Supreme Court was not mentioned in the said ordinance, so, under sections 497 & 498 of Cr.P.C, Supreme Court has jurisdiction. However, the latest amendment has conferred power regarding maintainability of bail petition before this Court under section 497/498 Cr.P.C. as well as before Accountability Courts. Amendment comes in the year 2022 and Hon'ble Chief Justice has power to pass a speaking order in terms of Lahore High Court Rules and Orders. In view of judgment of division bench and after amendment in Section 9-B, jurisdiction to grant bail is available to accountability court and this Court. So far as the composition of the Bench is concerned, Section 32 of the NAB Ordinance, speaks only about the appeal and revision and it is silent about the bail. For the fixation of these matters before the Division Bench, relied on PLD 2021 SC 756, wherein it was observed that offence under the NAB ordinance 1999 fall within the ambit of serious crimes for which the law does not allow bail as of right, so the bail petitions in respect of these offences are heard by division benches comprising of senior judges. So far as the pecuniary jurisdiction of NAB is concerned, the amount

should not be less than 500 million, where the NAB authorities take cognizance.

6. The learned counsel for the petitioner stated that he has no objection to hearing the titled petitions before the Division Bench of this Court.

7. We have heard learned counsel for the parties and minutely perused the record.

8. At the initial hearing stage, the issue of handling the fixation process for Constitutional petitions, etc., in NAB matters, other than final judgments or orders, has been raised, whether to be placed before the Single Bench or Division Bench for adjudication. The National Accountability Ordinance, 1999, is a federal legislative act and a special law designed to eliminate corruption and corrupt practices, holding individuals accountable for such acts. Its purpose is to ensure proper investigation of corruption cases so that those abusing authority and office are held responsible. The offences under the National Accountability Ordinance, 1999, are considered serious crimes. Therefore, given the gravity and seriousness of these offences, we believe it appropriate for Division Benches composed of senior Judges to hear bail petitions related to them. The scheme of the legal frame work under the National Accountability Ordinance, 1999 promulgated (as and amended from time to time) being the special law has specific provisions regarding appeal or revision by virtue of Section 32(b) of National Accountability Ordinance, 1999 about appeals and revisions against final judgment and order and cases in this regard filed before Lahore High Court, Lahore were heard by the Division Benches of this Court. Provisions of Section 32(b) & (c) stipulate that the Hon'ble Division

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Bench of this Court shall hear both the appeals and revisions. This jurisdiction shall apply to proceedings under the penal provisions of the National Accountability Ordinance, 1999. The issue having arisen from the judgment dated 08.04.2025 passed by learned Division Bench of Lahore High Court, Rawalpindi Bench Rawalpindi, in W.P. No.1027 of 2025, titled “Aamir Nawaz Minhas and others. Vs. National Accountability Bureau and others”, is exclusively contained in Article 199(a)(i) & 199(a)(iii) of the Constitution of Islamic Republic of Pakistan, 1973. As per the amended National Accountability Ordinance, 1999, in section 5(o), the term “Offence” is defined with the threshold to the value not less than Rs.500 million in all aspects and the exact definition is to be read in conjunction with the penal provisions contained in Section 9(a), 30, 31, 33(f) and the Schedule Offences in National Accountability Ordinance, 1999. The definition of the term offence has to be taken with the pecuniary jurisdiction vested with the respective Bench of the High Court. At this stage, it is relevant to consider that Civil Courts Ordinance, 1962 as amended upto 2016, stipulates that the pecuniary jurisdiction for the determination of forum of an appeal or revision as envisaged in Section 18 of Civil Court Ordinance, 1962 as amended is Rs.50 Million and High Court Rules & Orders Part-V, Chapter-III, Part B, Rule 2(i)(a), reveals jurisdiction of a Single Judge and Benches of the Court as under:-

“2. (1) Save as provided by these rules, the following cases shall be heard and disposed of by a Division Bench:-

(i)(a) A Regular first appeal from the decree of a subordinate court, jurisdictional value of which exceeds that of the District Court prescribed by the Civil Courts Ordinance, 1962 (No.II of 1962) and any cross-objection to decree.”

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Considering this aspect, it is relevant to mention that Civil Law applies to writ jurisdiction. If we gain analogy of the Civil Court Ordinance, 1962 and High Court Rules referred above, it reflects that the sensitivity of the issue has been determined by keeping view the value of the issue and for the purpose of jurisdictional value, it was referred that cases about less than Rs.500 million should be heard by the District Courts, whereas, the Division Bench should hear cases exceeding value of Rs.500 million. Increasing the upper limit of all the cases that fall within the definition of the National Accountability Ordinance, 1999, shows the gravity and seriousness of the offence. Considering the severity of the offences, it is relevant to mention that at present, the jurisdiction has been granted to the trial courts and High Courts to entertain bail petitions under the amended law, a right that was not previously available. In the case of “NATIONAL ACCOUNTABILITY BUREAU through Chairman and another. Vs. Agha SIRAJ KHAN DURRANI and eight others” (PLD 2021 Supreme Court 756), the matter was brought before the Hon’ble Supreme Court of Pakistan against orders issued by the Sindh High Court dated 13.12.2019 and 28.02.2020 regarding bail matters. The National Accountability Bureau challenged the orders passed by the Single Bench of the Sindh High Court and the Hon’ble Supreme Court of Pakistan while setting aside the orders dated 13.12.2019 and 28.02.2020, remanding the matter before the Sindh Court for afresh decision with the following observations:-

9. Before parting with this judgment, we would like to emphasize that offences under the NAB Ordinance, 1999, fall within the ambit of serious crimes for which the law does not allow bail as of right (ref: Section 9(b) NAB Ordinance, 1999).

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Therefore, considering the gravity and seriousness of such offences, we consider that it will be appropriate if bail petitions in respect of these offences are heard by Division Benches comprised of senior Judges.”

As mentioned earlier, the direction from the Hon’ble Supreme Court of Pakistan regarding the judgment remains in effect. The nature and scope of the provisions of the NAB Act with reference to the decision of the Hon’ble Supreme Court of Pakistan have been considered. We believe that the direction issued by the Hon’ble Supreme Court of Pakistan, keeping in view the gravity and seriousness of the offence and that the matters should be heard by the Division Bench of the High Court, is intact. Office of this Court, after the approval of Hon’ble Chief Justice, issued the roster and all cases about National Accountability Ordinance, 1999, assigned to the Division Benches instead of Single Bench in terms of Rule-2, Part-A of the Chapter-3 of High Court Rules and Orders, Volume-V, which states as under:-

“2. The Judges will sit singly or in benches of two or more Judges in accordance with a roster to be prepared by the Deputy Registrar with the approval of the Chief Justice from time to time.”

Under Article 202 of the Constitution of the Islamic Republic of Pakistan, such cases are heard by the Division Benches. However, no case has been filed under the writ of mandamus and certiorari before the Single Bench. The Hon’ble Chief Justice, under Rule 2, Part A of Chapter III of High Court Rules and Orders, Volume V, is authorized to issue a roster, and once a roster is issued, the benches are authorized to hear the cases. All cases related to NAB, as per the roster, have been assigned to division benches of this Court. All cases concerning NAB are to be heard by the

Division Benches, even though the Single Bench typically hears a constitutional petition. However, the Division Bench should hear constitutional petitions involving NAB-related issues. Even if presented as an observation, such a statement functions as binding obiter dicta, given the Supreme Court's authoritative role in the country's judicial hierarchy. It is now well-understood that the obiter dicta of the Supreme Court are binding on all other courts.

9. Considering the nature, gravity, and seriousness of the offence, and by the direction issued by the Hon'ble Supreme Court of Pakistan in the case of "NATIONAL ACCOUNTABILITY BUREAU through Chairman and another vs. Agha SIRAJ KHAN DURRANI and eight others" (PLD 2021 Supreme Court 756), as well as the High Court Rules and Orders mentioned above, the office is directed to refer all matters related to the NAB Ordinance, 1999, to the designated Division Bench for NAB matters of this Court. Resultantly, all these petitions will be placed before Division Bench concerned, for further proceedings.

10. These are the detailed reasons for the short order.

(Aalia Neelum)
Chief Justice

(Ali Zia Bajwa)
Judge

(Farooq Haider)
Judge

Approved for reporting

Chief Justice

Judge

Judge